

3	Hasan – Trust; 30-2022-01268695-PR-OP-CMC	<i>Hasan – Trust (2022-01268695)</i> Pre-trial Motions Petitioner Tariq S. Hasan’s motion for preservation of trust funds (ROA 434) is DENIED. Petitioner’s motion to adjudicate the issue of notice (ROA 442) is DENIED. Petitioner’s motion to allow and determine creditor’s claim (ROA 455) is DENIED. Petitioner’s motion for findings of breach of fiduciary duty (ROA 473) is DENIED. Petitioner’s Motion to Bifurcate and Sequence Consolidated Trial Proceedings (ROA 512) is DENIED. I. MOTIONS TO ADJUDICATE CONTESTED ISSUES By four separate motions (ROAs 434, 442, 455, and 473), Petitioner seeks to adjudicate contested factual and legal issues presented by the pleadings in this proceeding. Each motion is based on evidence presented through declarations and verified pleadings. “It has long been the rule that in probate matters ‘affidavits may not be used in evidence unless permitted by statute. [Citation.]’ [Citation.] Consequently, ‘when challenged in a lower court, affidavits and verified petitions may not be considered as evidence at a contested probate hearing. [Citations.]’” (<i>Estate of Bennett</i> (2008) 163 Cal.App.4th 1303, 1308–1309; see <i>Estate of Lensch</i> (2009) 177 Cal.App.4th 667, 675 [“This rule is consistent with the long-established rule of civil practice that “[a] party is entitled to have received in evidence and considered by the court, before findings are made, all competent, relevant and material evidence on any material issue””].) Not only do the motions improperly attempt to circumvent the parties’ right to an evidentiary hearing, they also seek adjudication of legal issues in violation of Code of Civil Procedure section 437c(t) which allows adjudication of a legal issue

	only when certain procedures are followed, including presentation of a stipulation by all parties impacted as to which issues will be presented by way of motion and a declaration from each stipulating party that the motion will further the interest of judicial economy. Further, any motion brought pursuant to section 437c(t) must comply with the requirements attendant to a summary adjudication motion, including submission of a separate statement of material facts, etc. Petitioners' motions do not comply with these requirements. The motions are procedurally defective and, on that ground, are DENIED. II. MOTION TO BIFURCATE Pursuant to Code of Civil Procedure sections 598 and 1048(b), Petitioner moves to bifurcate trial of the petitions and responses in this proceeding so the various pleadings would be tried as follows: (1) Petitioner's First Amended Petition (ROA 6), Petitioner's responses to other petitions, and various specified issues would be tried first; (2) Khalid Hasan, Rafat Subhan, Nusrat Hajar, and Saeeda Hasan's petition filed March 26, 2024 (ROA 222) and various specified issues would be tried second; and (3) Respondent Rafat Subhan's Petition for Instructions (ROA 21) and various specified issues would be tried third. (ROA 512 at 10:1-11:21.) Code of Civil Procedure section 598 reads, in pertinent part: "The court <i>may</i>, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to
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		Sections 597 and 597.5. The court, on its own motion, may make such an order at any time.” (Emphasis added.) Code of Civil Procedure section 1048(b) reads: “The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, <i>may</i> order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Emphasis added.) Though they utilize different methods, both sections allow the court to separate issues at trial to promote judicial economy and “avoid wasting court time.” (<i>Foreman & Clark Corp. v. Fallon</i> (1971) 3 Cal.3d 875, 888, fn. 8.) The determination of whether to bifurcate or sever claims is entrusted to the court’s broad discretion. (<i>Grappo v. Coventry Financial Corp.</i> (1991) 235 Cal.App.3d 496, 504; <i>Pilliod v. Monsanto Co.</i> (2021) 67 Cal.App.5th 591, 625–626.) Based on the record before the court, the requested bifurcation would not promote judicial economy. Accordingly, the motion is denied. Respondent Rafat Subhan is directed to give notice.
4	Rhodes – Trust; 30-2025-01527303-PR-TR-CMC	<i>Rhodes – Trust (2025-01527303)</i> Motion to Suspend; Motion to Appoint Eugene S. Rhodes’ Motion to Appoint Interim Professional Private Fiduciary to Replace Existing Co-Trustees (ROA 12) is GRANTED in part as set forth below. Paul M. Rhodes’ Motion for Suspension of Co-trustee Eugene S. Rhodes and Other Relief,